

PUBLICATIONS DE LA COUR PERMANENTE DE JUSTICE
INTERNATIONALE

SÉRIE A — N° 22

RECUEIL DES ARRÊTS

AFFAIRE DES ZONES FRANCHES DE LA
HAUTE-SAVOIE ET DU PAYS DE GEX

ORDONNANCE DU 19 AOÛT 1929

PUBLICATIONS OF THE PERMANENT COURT
OF INTERNATIONAL JUSTICE

SERIES A — No. 22

COLLECTION OF JUDGMENTS

CASE OF THE FREE ZONES
OF UPPER SAVOY
AND THE DISTRICT OF GEX

ORDER OF AUGUST 19th, 1929

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF
1929



LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY
1929

ORDER

MADE ON AUGUST 19th, 1929.

SEVENTEENTH (ORDINARY) SESSION.

1929.
August 19th.
File E. c. XVI.
Docket XVII. 1

Before:

MM. ANZILOTTI, *President*,

LODER,

NYHOLM,

DE BUSTAMANTE,

ALTAMIRA,

ODA,

HUBER,

PESSÔA,

HUGHES,

MM. NEGULESCO,

WANG,

M. DREYFUS, *Judge ad hoc*.

Judges,

Deputy-Judges,

CASE OF THE FREE ZONES OF UPPER SAVOY
AND THE DISTRICT OF GEX.

THE PERMANENT COURT OF INTERNATIONAL JUSTICE,

Composed as above,

After deliberation,

Having regard to Articles 48, 54, and 58 to 60 of the Court's Statute,

Whereas, by a Special Agreement dated October 30th, 1924, ratified on March 21st, 1928, and duly notified to the Registrar of the Court on March 29th, 1928, the President of the French Republic and the Swiss Federal Council, in view of the fact that France and Switzerland, having been "unable to agree in regard to the interpretation to be placed on Article 435,

paragraph 2, of the Treaty of Versailles, with its annexes, and as it has proved to be impossible to effect the agreement provided for therein by direct negotiations,

“Have decided to resort to arbitration in order to obtain this interpretation and for the settlement of all the questions involved in the execution of paragraph 2 of Article 435 of the Treaty of Versailles”,

Whereas the two Parties have respectively appointed as their Agents,

the French Government, M. Jules Basdevant, Professor in the Faculty of Law of Paris and Assistant Legal Adviser to the Ministry of Foreign Affairs;

the Swiss Government, H.E. M. A. de Pury, Swiss Minister to the Netherlands, and M. Paul Logoz, member of the Swiss National Council and Professor at the University of Geneva; and as Counsel,

the French Government, M^e Paul-Boncour, Deputy, former Minister and Counsel before the Court of Appeal of Paris;

the Swiss Government, M. Walter Burckhardt, Professor at the University of Berne, and M. Paul-Edmond Martin, Professor at the University of Geneva and Director of the Geneva State Archives;

Having regard to the Cases, Counter-Cases and Replies duly submitted by the Parties on September 5th, 1928, January 23rd, and June 12th, 1929, and the documents annexed thereto;

Having duly heard the oral pleadings presented by M^e Paul-Boncour and M. Logoz and the replies made by M^e Paul-Boncour, M. Basdevant and M. Logoz on July 9th, 10th, 11th, 12th, 13th, 15th, 16th, 18th, 19th, 22nd and 23rd, 1929;

Whereas, according to Article 1, paragraph 1, of the said Special Agreement, “it shall rest with the Permanent Court of International Justice to decide whether, as between Switzerland and France, Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, has abrogated or has for its object the abrogation of the provisions of the Protocol of the Conference of Paris of November 3rd, 1815, of the Treaty of Paris of November 20th, 1815, of the Treaty of Turin of March 16th, 1816, and of the Manifesto of the Sardinian Court of Accounts of September 9th, 1829, regarding the customs

and economic régime of the free zones of Upper Savoy and the Pays de Gex, having regard to all facts anterior to the Treaty of Versailles, such as the establishment of the Federal customs in 1849, which are considered relevant by the Court”;

Whereas, under paragraph 2 of the same article of the Special Agreement, “the High Contracting Parties agree that the Court, as soon as it has concluded its deliberation on this question, and before rendering any judgment, shall accord to the two Parties a reasonable time to settle between themselves the new régime to be applied in those districts, under such conditions as they may consider expedient, as provided in Article 435, paragraph 2, of the said Treaty. This time may be extended at the request of the two Parties”;

Whereas under Article 2, paragraph 1, of the Special Agreement: “failing the conclusion and ratification of a convention between the two Parties within the time specified, the Court shall, by means of a single judgment rendered in accordance with Article 58 of the Court’s Statute, pronounce its decision in regard to the question formulated in Article 1 and settle for a period to be fixed by it and having regard to present conditions, all the questions involved in the execution of paragraph 2 of Article 435 of the Treaty of Versailles”;

Whereas, according to the notes exchanged on October 30th, 1924, between the French Minister for Foreign Affairs and the Swiss Minister at Paris, it is understood between the Parties, amongst other things, “that no objection shall be raised on either side to the communication by the Court to the Agents of the two Parties, unofficially and in each other’s presence, of any indications which may appear desirable as to the result of the deliberation upon the question formulated in Article 1, paragraph 1, of the Arbitration Convention”;

Whereas, under Article 3, paragraph 3, of the Special Agreement of October 30th, 1924, the written Reply to be filed by each Party shall formulate “its final conclusions”;

Whereas the Reply filed on behalf of the French Government submits that the Court should:

[*Translation.*]

"In accordance with the letters attached to the Special Agreement, communicate to the Agents of the two Parties, unofficially and in each other's presence, any indications which may appear desirable as to the result of its deliberation upon the question formulated in Article 1, paragraph 2, of the Special Agreement;

Determine the import of its deliberation and, in the circumstances contemplated by Article 2 of the Special Agreement, so formulate the operative part of its judgment that its effect shall be to decide that, as between France and Switzerland, Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, has abrogated the provisions of the Protocol of the Conferences of Paris of November 3rd, 1815, of the Treaty of Paris of November 20th, 1815, of the Treaty of Turin of March 16th, 1816, and of the Manifesto of the Sardinian Court of Accounts of September 9th, 1829, regarding the customs and economic régime of the free zones of Upper Savoy and the District of Gex;

As soon as it has concluded its deliberation on this question and before pronouncing any decision, accord to the two Parties a reasonable time to settle between themselves the new régime to be applied in those districts under such conditions as they may consider expedient, as provided by Article 435, paragraph 2, of the Treaty of Versailles, this time being capable of extension at the request of the two Parties";

Whereas the Reply filed on behalf of the Swiss Government submits that:

[*Translation.*]

"1. As between France and Switzerland, Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, has not abrogated the provisions of the Protocol of the Conferences of Paris of November 3rd, 1815, of the Treaty of Paris of November 20th, 1815, of the Treaty of Turin of March 16th, 1816, or of the Manifesto of the Sardinian Court of Accounts of September 9th, 1829, regarding the customs and economic régime of the zones of Upper Savoy and the District of Gex.

2. As between Switzerland and France, Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, has not for its object the abrogation of the provisions of the Protocol of the Conferences of Paris of November 3rd, 1815, of the Treaty of Paris of November 20th, 1815, of the Treaty of Turin of March 16th, 1816, or of the Manifesto of the Sardinian Court of Accounts of September 9th, 1829, regarding the customs and economic régime of the free zones of Upper Savoy and the District of Gex, *that is to say*, that as between Switzerland and France, Article 435, paragraph 2, of the Treaty of Versailles,

with its annexes, is not intended necessarily to lead to the abrogation of the aforesaid provisions, but simply means that Switzerland and France may abrogate them by mutual consent”;

Whereas, in the same document, with reference to the fixing of the time provided for in Article 1, paragraph 2, of the Special Agreement, it is said that

“The Federal Government reserves the right to make such submissions as may be indicated in regard to this point when the Court has given the Parties the necessary indications as to the result of its deliberation upon the question of interpretation (Article 1, paragraph 1, of the Special Agreement) on the solution of which are dependent the direct negotiations here referred to”;

Whereas Article 435 of the Treaty of Versailles is as follows:

“The High Contracting Parties, while they recognize the guarantees stipulated by the treaties of 1815, and especially by the Act of November 20th, 1815, in favour of Switzerland, the said guarantees constituting international obligations for the maintenance of peace, declare nevertheless that the provisions of these treaties, conventions, declarations and other supplementary acts concerning the neutralized zone of Savoy, as laid down in paragraph 1 of Article 92 of the Final Act of the Congress of Vienna and in paragraph 2 of Article 3 of the Treaty of Paris of November 20th, 1815, are no longer consistent with present conditions. For this reason the High Contracting Parties take note of the agreement reached between the French Government and the Swiss Government for the abrogation of the stipulations relating to this zone which are and remain abrogated.

The High Contracting Parties also agree that the stipulations of the treaties of 1815 and of the other supplementary acts concerning the free zones of Upper Savoy and the Gex District are no longer consistent with present conditions, and that it is for France and Switzerland to come to an agreement together with a view to settling between themselves the status of these territories under such conditions as shall be considered suitable by both countries”;

Whereas the relevant passages in the annexes to this article are as follows:

"I.

The Swiss Federal Council has informed the French Government on May 5th, 1919, that after examining the provisions of Article 435 in a like spirit of sincere friendship, it has happily reached the conclusion that it was possible to acquiesce in it under the following conditions and reservations:

1. The neutralized zone of Haute-Savoie:

2. Free zone of Haute-Savoie and the District of Gex.

(a) The Federal Council makes the most express reservations to the interpretation to be given to the statement mentioned in the last paragraph of the above article for insertion in the Treaty of Peace, which provides that 'the stipulations of the treaties of 1815 and other supplementary acts concerning the free zones of Haute-Savoie and the Gex District are no longer consistent with present conditions'. The Federal Council would not wish that its acceptance of the above wording should lead to the conclusion that it would agree to the suppression of a system intended to give neighbouring territory the benefit of a special régime which is appropriate to the geographical and economical situation and which has been well tested.

In the opinion of the Federal Council, the question is not the modification of the customs system of the zones as set up by the treaties mentioned above, but only the regulation in a manner more appropriate to the economic conditions of the present day of the terms of the exchange of goods between the regions in question. The Federal Council has been led to make the preceding observations by the perusal of the draft convention concerning the future constitution of the zones which was annexed to the note of April 26th from the French Government. While making the above reservations, the Federal Council declares its readiness to examine in the most friendly spirit any proposals which the French Government may deem it convenient to make on the subject.

(b) It is conceded that the stipulations of the treaties of 1815 and other supplementary acts relative to the free zones will remain in force until a new arrangement is come to between France and Switzerland to regulate matters in this territory.

II.

The French Government have addressed to the Swiss Government, on May 18th, 1919, the following note in reply to the communication set out in the preceding paragraph:

In a note dated May 5th, the Swiss Legation in Paris was good enough to inform the Government of the French Republic that the Federal Government adhered to the proposed article to be inserted in the Treaty of Peace between the Allied and Associated Governments and Germany.

The French Government have taken note with much pleasure of the agreement thus reached, and, at their request, the proposed article, which had been accepted by the Allied and Associated Governments, has been inserted under No. 435 in the Peace conditions presented to the German plenipotentiaries.

The Swiss Government, in their note of May 5th on this subject, have expressed various views and reservations.

Concerning the observations relating to the free zones of Haute-Savoie and the Gex District, the French Government have the honour to observe that the provisions of the last paragraph of Article 435 are so clear that their purport cannot be misapprehended, especially where it implies that no other Power but France and Switzerland will in future be interested in that question.

The French Government, on their part, are anxious to protect the interests of the French territories concerned, and, with that object, having their special situation in view, they bear in mind the desirability of assuring them a suitable customs régime, and determining, in a manner better suited to present conditions, the methods of exchanges between these territories and the adjacent Swiss territories, while taking into account the reciprocal interests of both regions.

It is understood that this must in no way prejudice the right of France to adjust her customs line in this region in conformity with her political frontier, as is done on the other portions of her territorial boundaries, and as was done by Switzerland long ago on her own boundaries in this region.

The French Government are pleased to note on this subject in what a friendly disposition the Swiss Government take this opportunity of declaring their willingness to consider any French proposal dealing with the system to be substituted for the present régime of the said free zones, which the French Government intend to formulate in the same friendly spirit.

Moreover, the French Government have no doubt that the provisional maintenance of the régime of 1815 as to the free zones referred to in the above-mentioned

paragraph of the note from the Swiss Legation of May 5th, whose object is to provide for the passage from the present régime to the conventional régime, will cause no delay whatsoever in the establishment of the new situation which has been found necessary by the two Governments. This remark applies also to the ratification by the Federal Chambers, dealt with in paragraph 1 (a) of the Swiss note of May 5th, under the heading 'Neutralized zone of Haute-Savoie'";

Whereas, at the present stage of the proceedings, the Court is simply asked to accord to the two Parties a reasonable time to settle between themselves a "new régime" for the free zones of Upper Savoy and the District of Gex; as this time is to be accorded "as soon as" the Court's "deliberation" on the question set out in Article 1, paragraph 1, of the Special Agreement is concluded, and before "rendering any judgment"; as it will rest with the Court only in certain circumstances and at a later stage to "pronounce its decision" upon the said question by means of a "judgment rendered in accordance with Article 58 of the Statute"; but seeing that "no objection shall be raised" by the Parties to the "communication by the Court unofficially" to their Agents "of any indications which may appear desirable as to the result of the deliberation" upon the said question;

Whereas the spirit and letter of its Statute, in particular Articles 54, paragraph 3, and 58, do not allow the Court "unofficially" to communicate to the representatives of two Parties to a case "the result of the deliberation" upon a question submitted to it for decision; as, in contradistinction to that which is permitted by the Rules (Article 32), the Court cannot, on the proposal of the Parties, depart from the terms of the Statute;

Whereas, on the other hand, according to the preamble of the Special Agreement of October 30th, 1924, there is reason to believe that the agreement between the Parties contemplated by Article 435, paragraph 2, of the Treaty of Versailles, has hitherto proved to be impossible because they have "been unable to agree in regard to the interpretation to be placed upon" the said article and its annexes; as consequently it would be useless to grant the Parties time within which to conclude this agreement, without informing them at the same

time or previously, what, in the Court's opinion is the correct interpretation of the said texts as between France and Switzerland;

Whereas the judicial settlement of international disputes, with a view to which the Court has been established, is simply an alternative to the direct and friendly settlement of such disputes between the Parties; as consequently it is for the Court to facilitate, so far as is compatible with its Statute, such direct and friendly settlement;

Whereas the Court must, in any event, fix by order, in accordance with Article 48 of the Statute, the time contemplated by Article 1, paragraph 2, of the Special Agreement; and whereas, in contradistinction to judgments contemplated by Article 58 of the Statute, to which reference is made in Article 2, paragraph 1, of the Special Agreement, orders made by the Court, although as a general rule read in open Court, due notice having been given to the Agents, have no "binding" force (Article 59 of the Statute) or "final" effect (Article 60 of the Statute) in deciding the dispute brought by the Parties before the Court;

Whereas, in case of doubt, the clauses of a special agreement by which a dispute is referred to the Court must, if it does not involve doing violence to their terms, be construed in a manner enabling the clauses themselves to have appropriate effects;

Whereas it is possible, without infringing the provisions of the Statute, to give effect in all essential respects to the common will of the Parties as expressed in the Special Agreement, by indicating, in the grounds of the order according to the Parties the time referred to in Article 1, paragraph 2, of the Special Agreement, the result of the Court's deliberations upon the question formulated in Article 1, paragraph 1, of that instrument;

As, nevertheless, it is important to set forth clearly that special agreements whereby international disputes are submitted to the Court should henceforth be formulated with due regard to the forms in which the Court is to express its opinion according to the precise terms of the constitutional provisions governing its activity, in order that the Court may be able to deal with such disputes in the ordinary course and without resorting, as in the present case, to a construction which must be regarded as strictly exceptional,

Makes the following Order:

As to the evidence:

Whereas, in the course of his argument on July 13th, the Agent for the Swiss Government filed a volume entitled: *Publications des Comités suisses en faveur du maintien des zones franches de 1815 et 1816*, and as, in his reply of July 19th, the Agent for the French Government submitted, as a preliminary objection, that this publication should not be received in evidence;

As, in his reply on July 22nd, the Agent for the Swiss Government stated that he left the decision on this point to the Court;

Whereas, according to Article 52 of its Statute, "after the Court has received the proofs and evidence within the time specified for the purpose, it may refuse to accept any further oral or written evidence that one Party may desire to present unless the other side consents";

Whereas the extracts from the said volume read by the Agent for the Swiss Government during the hearing are not necessary at the present stage of the proceedings to enable the Court to form its opinion upon the question submitted to it by Article 1, paragraph 1, of the Special Agreement;

As to the Court's function:

Whereas, according to Article 1, paragraph 1, of the Special Agreement, it rests with the Court to decide whether, as between France and Switzerland, Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, has abrogated or has for its object the abrogation of the provisions of the Protocol of the Conferences of Paris of November 3rd, 1815, of the Treaty of Paris of November 20th, 1815, of the Treaty of Turin of March 16th, 1816, and of the Manifesto of the Sardinian Court of Accounts of September 9th, 1829, regarding the customs and economic régime of the free zones of Upper Savoy and the District of Gex, having regard to all facts anterior to the Treaty of Versailles;

Whereas the expression "as between France and Switzerland" has the effect of limiting the function of the Court solely to that of determining the reciprocal rights and

obligations arising in connection with the régime of the free zones for the two countries, under Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, apart from the legal relations as between signatories of the said Treaty resulting from this article ;

Whereas, having regard more particularly to the aim of the Special Agreement, as this aim appears from its preamble when it states that the Parties have been unable to agree in regard to the interpretation to be placed upon Article 435, paragraph 2, of the Treaty of Versailles, with its annexes ; having regard to the fact that the real divergence which was the cause of the failure of the Parties to reach an agreement, related to the question whether the régime of the zones could be abolished without Switzerland's consent ; and having regard to the fact that the Court cannot as a general rule be compelled to choose between constructions determined beforehand none of which may correspond to the opinion at which it may arrive, the Court is entirely free to interpret Article 435, paragraph 2, with its annexes, of the Treaty of Versailles upon both points without restriction, that is, whether it has abrogated the former provisions in question, and whether it has for its object their abrogation ; as, therefore, if it arrives at the conclusion that the article, with its annexes, has not abrogated the former provisions relating to the free zones, it is not obliged to say that it has for its object their abrogation, but, on the contrary, may equally say that this is not the intention of the article, with its annexes ;

Whereas, in view of the indications afforded by the preamble of the Special Agreement and by the history of the negotiations which have taken place between the Parties with a view to reaching the agreement contemplated by Article 435, paragraph 2, and which have been cited before the Court, the task of the latter, in replying to the question whether the said article, with its annexes, has for its object the abrogation of the former provisions relating to the free zones, is to decide whether or not Switzerland is obliged to accept, as a basis for the future negotiations contemplated by Article 1, paragraph 2, of the Special Agreement, the abolition of the régime of the free zones, that is to say, in particular the transfer of the French customs barrier in these territories to the

political frontier; and whereas it is, in fact, evident that if France and Switzerland succeed in reaching the agreement provided for in the said article and in Article 2, paragraph 1, of the Special Agreement, that agreement, whatever its contents may be, will have the formal effect of abrogating the former provisions; and therefore if, in replying to the question put, the Court were not to regard the expression "has for its object the abrogation of" as meaning "is intended necessarily to lead to the abrogation of", its reply would not eliminate the fundamental difficulties which have hitherto impeded the negotiations between France and Switzerland and which have induced them to have recourse to the Court;

As to the questions submitted:

Whereas the Court, in performing its function in the light of the foregoing considerations, must have regard to all facts antecedent to the Treaty of Versailles, and particularly the establishment of the Federal customs in 1849, which are considered relevant by it;

Whereas these facts, taken together, are clearly relevant to the question submitted to the Court in that they explain the conclusion drawn by the High Contracting Parties to the Versailles Treaty in their declaration to the effect that "the stipulations of the treaties of 1815 and of the other supplementary acts concerning the free zones of Upper Savoy and the Gex District are no longer consistent with present conditions", namely "that it is for France and Switzerland to come to an agreement together with a view to settling between themselves the status of these territories under such conditions as shall be considered suitable by both countries"; and as the subsequent examination of the question by the Court has been entirely conducted in the light of this consideration;

Whereas the text itself of Article 435, paragraph 2, of the Treaty of Versailles draws from the statement that the former stipulations are not consistent with present conditions, no other conclusion but that France and Switzerland are to settle between themselves the status of the free zones, a conclusion which is tantamount to a declaration of disinterestedness as regards that status, on the part of the High Contracting Parties other than France; as, in particular, this text does

not set forth the conclusion that as a necessary consequence of this inconsistency the former stipulations relating to the free zones are abrogated;

Whereas, furthermore, in Article 435, paragraph 1, of the Treaty of Versailles, the High Contracting Parties, after stating that the "provisions of these treaties [of 1815], conventions, declarations and other supplementary acts concerning the neutralized zone of Savoy.... are no longer consistent with present conditions", take "note of the agreement reached between the French Government and the Swiss Government for the abrogation of the stipulations relating to this zone", adding that these stipulations "are and remain abrogated";

Whereas the expression "are no longer consistent with present conditions", when used in the first paragraph of the article, constitutes the ground on which the High Contracting Parties acquiesce in an agreement already concluded between France and Switzerland abolishing the neutral zone; as, when it is used in the second paragraph of the same article, it also constitutes the ground on which the High Contracting Parties declare that they acquiesce in an agreement—in this case a future agreement—between France and Switzerland;

As, consequently—no matter what its significance might be in other contexts—, there is no reason for regarding the expression "are no longer consistent with present conditions" as *ipso facto* involving, in the second paragraph of the article, the abolition of the free zones, since in the first paragraph its meaning is not such as automatically to involve the abolition of the neutral zone;

Whereas, in any event, Article 435 of the Treaty of Versailles is not binding on Switzerland, which is not a Party to this Treaty, except to the extent to which that country has itself accepted it; as this extent is determined by the note of the Swiss Federal Council of May 5th, 1919, an extract from which constitutes Annex I to this article; as it is by this action and by this action alone that the Swiss Government has "acquiesced" in the "provisions" of Article 435", namely "under the conditions and reservations" which are set out in the said note;

Whereas, amongst the aforesaid conditions and reservations, it is stated *inter alia* that "the Federal Council would not wish that its acceptance of the above wording [i.e. Article 435, paragraph 1, of the Treaty of Versailles] should lead to the conclusion that it would agree to the suppression of a system which has been well tested", namely the régime of the free zones;

As, accordingly, the said article, assuming that it were possible to interpret it as involving the abolition of the said régime, could not be operative as between France and Switzerland, unless Switzerland's consent were not necessary for such abolition;

Whereas the Court is unable to regard as decisive the arguments to the contrary which it has been sought to deduce from other passages of the said note of the Federal Council and from the whole of the French note of May 18th, 1919, which forms Annex II to Article 435 of the Treaty of Versailles;

As, with regard to this latter note, the Court—which, though its task is to interpret the said article *with its annexes*, nevertheless remains free to estimate the weight to be attached from this point of view to each of the annexes—is unable to regard it as possessing any weight for the purposes of interpretation, having regard especially to the fact that it cannot in any circumstances affect the conditions of the Federal Council's acquiescence in the article in question, that acquiescence being a unilateral act on the part of Switzerland;

Whereas, in regard to the possibility of abolishing the régime of the free zones without Switzerland's consent, the actual terms of Article 435, paragraph 2, generally speaking, would seem to presuppose the existence of a right on the part of Switzerland derived from the former stipulations; as, in the same connection, Switzerland's consent has in fact been sought; and lastly, as the High Contracting Parties have inserted, after Article 435, the Swiss note of May 5th, 1919, which, in the Court's opinion, is entirely based on the existence of such a right on the part of Switzerland;

Whereas, with particular regard to the Sardinian zone, Switzerland, in her capacity as Party to the Treaty of Turin

of March 16th, 1816, has acquired a contractual right to the withdrawal of the customs barrier in that district ;

Whereas, with particular regard to the zone of Saint-Gingolph, the Court, being of opinion that the Treaty of Turin of March 16th, 1816, has not been abrogated, the same is true as regards the Manifesto of the Royal Chamber of Accounts of Sardinia dated September 9th, 1829, the question of the legal nature of that instrument remaining however reserved ;

Whereas, with particular regard to the zone of Gex, both Article 435, paragraph 2, of the Treaty of Versailles and the Special Agreement treat this zone in exactly the same way as the zone of Upper Savoy ; and as this zone forms part of a territorial arrangement in favour of Switzerland, an arrangement which, being contemplated in the "Declaration of the Powers assembled at the Congress of Vienna in regard to Switzerland" of March 20th, 1815, to which Switzerland acceded by act of the Diet of the Helvetian Confederation dated May 27th, 1815, was restated in the Protocol signed on November 3rd, 1815, at Paris (this Protocol being referred to in the Special Agreement and expressly mentioning the withdrawal of the French customs barriers "from the Swiss frontiers facing the Jura"), and received final form in Article 1 of the Treaty of Peace signed at Paris on November 20th, 1815, the preamble and third paragraph of this article being as follows :

[*Translation.*]

"The frontiers of France shall be as they were in 1790, save for the modifications in one direction or the other which are indicated in this article.

3. In order to establish direct communication between the Canton of Geneva and Switzerland, that part of the District of Gex bordered on the east by the Lake of Geneva, on the south by the territory of the Canton of Geneva, on the north by that of the Canton of Vaud, on the west by the course of the river Versoix and by a line including the communes of Collex-Bussy and Meyrin, leaving the commune of Fernex to France, shall be ceded to the Helvetian Confederation to be united to the Canton of Geneva. The line of the French customs shall be placed to the west of the Jura, so that the whole District of Gex shall be outside this line" ;

Whereas the aforesaid Protocol of November 3rd, 1815, was formally transmitted to Switzerland by the Powers signatory to the Declaration of Vienna of March 20th, 1815, together with a Declaration of November 20th, 1815, following upon the act of accession of May 27th, 1815, of the Helvetian Diet to the said Declaration of March 20th, 1815;

Whereas all these instruments, taken together, as also the circumstances in which they were executed, establish, in the Court's opinion, that the intention of the Powers was, besides "rounding out" the territory of Geneva and assuring direct communication between the Canton of Geneva and the rest of Switzerland, to create in favour of Switzerland a right, on which she could rely, to the withdrawal of the French customs barrier from the political frontier of the District of Gex, that is to say, a right to the free zone of Gex;

Whereas the Court, having reached this conclusion simply on the basis of an examination of the situation of fact in regard to this case, need not decide as to the extent to which international law takes cognizance of the principle of "stipulations in favour of third Parties";

Whereas, if Article 435, paragraph 2, with its annexes, of the Treaty of Versailles has not, as between France and Switzerland, abrogated the former provisions relating to the free zones, neither has it for its object the abrogation thereof; as, in fact, since the High Contracting Parties in Article 435, paragraph 2, of the Treaty of Versailles, have not drawn from their statement as to the inconsistency of the former stipulations concerning the free zones with present conditions any consequence other than that it is for France and Switzerland to come to an agreement together with a view to settling between themselves the status of these territories under such conditions as shall be considered suitable by both countries, without in any way prejudging the question of the contents of this agreement which, therefore, may or may not, according to the common will of the Parties, lead to the abrogation of the régime of the free zones; and since Switzerland, in her note of May 5th, 1919, annexed to the said article, made an express reservation regarding abolition in the future ("would agree") of the régime of the free zones resulting from the former stipulations concerning them, it

is impossible to conclude that as between France and Switzerland, the aforesaid article and its annexes is intended necessarily to lead to the abrogation of the said provisions, thus compelling Switzerland to accept the abrogation of the régime of the free zones as the only possible basis of the future agreement between herself and France;

Whereas this view is in no way weakened by the facts antecedent to the Treaty of Versailles; as, on the contrary, it is corroborated by the facts relating to the drafting of Article 435 of the Treaty of Versailles which have been cited before the Court;

As to the time to be granted:

Whereas, having regard to the circumstances of the present case, a period of approximately nine months seems to be sufficient to allow the Parties to establish the basis of an agreement which they have themselves, on many occasions, recognized as highly desirable;

THE COURT

(1) excludes as evidence at the present stage of the case the *Publications des Comités suisses en faveur du maintien des zones franches de 1815 et 1816* filed at the hearing of July 13th, 1929, by the Agent for the Swiss Government;

(2) accords to the Government of the French Republic and to the Government of the Swiss Confederation a period expiring on May 1st, 1930, to settle between themselves, under such conditions as they may consider expedient, the "new régime" to be applied in the districts contemplated by Article 435, paragraph 2, of the Treaty of Versailles.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this nineteenth day of August, nineteen hundred and twenty-nine, in three copies, one of which shall be placed in the archives of the

Court and the others delivered to the Agents of the Government of the French Republic and of the Swiss Federal Government respectively.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

MM. Nyholm, Judge, Negulesco, Deputy-Judge, and Dreyfus, Judge *ad hoc*, whilst concurring in the operative portion of the present order, declare that they are unable to agree with the reasons to the extent which they have themselves indicated in the separate opinions set forth hereafter.

M. Pessôa, Judge, while agreeing with the present order, desires to add thereto the observations which follow hereafter.

(Initialled) D. A.

(Initialled) Å. H.
